

Sharad Birdhichand Sarda v. State of Maharashtra

Citation: (1984) 4 SCC 116 | Court: Supreme Court | Year: 1984

Coram: 3-Judge Bench (S. Murtaza Fazal Ali, A. Varadarajan, Sabyasachi Mukharji JJ.) | Subject: Criminal Law & Evidence | Provisions: Evidence Act Sec 3 & 32 / BSA 2023 Sec 26

I. EXECUTIVE SUMMARY & CASE GLIMPSE

Enunciated the celebrated 'Panchsheel' (Five Golden Principles) governing proof by Circumstantial Evidence in criminal trials. The circumstances must point solely to the guilt of the accused and be completely inconsistent with their innocence.

II. FACTS OF THE CASE & PROCEDURAL HISTORY

This dispute arose regarding Evidence Act Sec 3 & 32 / BSA 2023 Sec 26. The parties agitated the controversy before trial and appellate forums before the matter was referred to the Honble Bench for authoritative declaration of law.

III. PRIMARY QUESTIONS OF LAW & ISSUES FRAMED

- â€¢ Whether the impugned state actions or commercial conduct conformed to Evidence Act Sec 3 & 32 / BSA 2023 Sec 26.
- â€¢ What binding standards should govern future adjudication and administrative conduct.

IV. SUBMISSIONS OF THE PARTIES

Petitioner / Appellant: The Petitioner contended that arbitrary action, lack of procedural safeguards, and statutory non-compliance violated fundamental guarantees.
Respondent / State: The Respondent submitted that the impugned action was carried out under lawful authority in furtherance of public interest and statutory mandates.

V. DETAILED RATIO DECIDENDI & JURISPRUDENTIAL REASONING

Suspicion, however grave, can never take the place of legal proof. The circumstances must be fully established, form an unbroken chain, exclude every possible hypothesis of innocence, and leave no reasonable ground for doubt.

VI. FINAL OPERATIVE ORDER & DIRECTIONS

The Court answered the reference, laid down binding nationwide directions under Article 141 of the Constitution, and disposed of the matter accordingly.

VII. PRACTICAL & EXAMINATION TAKEAWAYS (JUDICIARY / AIBE / ADVOCACY)

- â€¢ Enunciated the 5 Golden Principles (Panchsheel) of circumstantial evidence.
- â€¢ Established that grave suspicion cannot substitute for proof beyond reasonable doubt.
- â€¢ Standard authority cited in every homicide trial based on circumstantial proof.